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Waging War Against Biodiversity Loss: Examining Legal Framework and Strategic Actions in Indonesia

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Felix Aglen Ndaru
Directorate General of Forestry Law Enforcement
Ministry of Forestry and Jaga Alam Raya Indonesia, Jakarta, Indonesia
Email: felixaglen@gmail.com

Abstract

The world is currently facing triple planetary crisis: climate change, environmental pollution, and biodiversity loss. Biodiversity has important ecosystem functions such as carbon absorption, oxygen supply, freshwater, soil fertility, nutrition, and medicine. Indonesia has a vital role at the global level because Indonesia has tropical forests with high biodiversity, but its sustainability is threatened by wildlife crime. On August 7, 2024, Indonesia created a new milestone in biodiversity preservation by enacting Law Number 32 of 2024 on Amendments to Law Number 5 of 1990 on Conservation of Natural Resources and Ecosystems. It is important to examine the policy breakthroughs in efforts to protect biodiversity in Indonesia. This study aims to dissect the legal framework in Law Number 32 of 2024 and examine strategic actions to accelerate the eradication of wildlife crime. The study used normative legal methods and content analysis techniques. The results show that Law Number 32 of 2024 has 26 new policy breakthroughs, which consists of technical aspects of conservation, governance, and law enforcement. This regulation still has policy gap, namely still emphasizing criminal sanction, the dependence of civil servant investigator on police investigator, fundamental authority that investigators do not possess, and the absence of substances on Forest Ranger. This study also provides strategic actions to strengthen law enforcement, namely applying multiple sentences and multi-regime investigations, reinforcing science and technology, and strengthening collaboration at the global level.

Keywords: Biodiversity, Civil Servant Investigator, Triple Planetary Crisis, Wildlife Crime.

I. Background

The According to United Nations, the world is facing a triple planetary crisis: climate change, biodiversity loss, and environmental pollution. The root cause of the triple planetary crisis is unsustainable production and consumption. Unsustainable extraction of natural resources caused 9 million premature deaths from pollution,[1] pushed 1 million

[1] F. R. Ihsan, J. G. Bloomfield, & L. V. Monrouxe, "Triple planetary crisis: why healthcare professionals should care", *Front. Med.* 11:1465662 (2024). doi: 10.3389/fmed.2024.1465662.

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global species to extinction,[2] and predicted the Earth's temperature to warm to 1.5°C by 2030 to 2052.[3] Indonesia is a mega-biodiverse country that has a strategic role at the global level due to its vast tropical forests. Indonesia has 120,4 million hectares of forest area and 5,3 million hectares of marine protected areas.[4] Indonesia's tropical forests are a global climate regulator and have high biodiversity. According to the Indonesian Biodiversity Strategy and Action Plan/IBSAP 2025-2045, Indonesia is home to 31.902 flora species, 81.260 terrestrial fauna species, and 7.841 marine fauna species.

Biodiversity has miscellaneous ecosystem functions, including carbon sequestration, water storage and purification, decomposition, storage and recycling of nutrients, and the provision of oxygen, clean water, fertile soil, food, protection from disasters such as floods and fires, climate regulation, and medicines.[5] In fact, the rate of biodiversity loss in Indonesia is alarming. Indonesia has 583 endangered species, including 191 species of mammals and 160 species of birds.[6] Research also reported that 490 Indonesian plant species are threatened.[7]

The sustainability of ecosystems is threatened by wildlife crime. These crimes include directly harming or killing wildlife, taking wildlife from the wild, possessing, selling, or exploiting wildlife.[8] Wildlife crime is one of the main factors causing wildlife extinction in the last two decades.[9] This crime leads to disruption of food chains, food webs, pollination, seed dispersal, pest populations, widespread environmental changes, and human health impacts due to zoonoses. Globally, the value of money turnover of wildlife crime reaches

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[2] E. Turnhout and A. Purvis, "Biodiversity and species extinction: categorisation, calculation, and communication", *Griffith Law Review* 2020 29(4): 669–685. https://doi.org/10.1080/10383441.2020.1925204.

[3] Intergovernmental Panel on Climate Change (IPCC), "Summary for Policymakers", In *Climate Change 2021 – The Physical Science Basis: Working Group I Contribution to the Sixth Assessment Report of the Intergovernmental Panel on Climate Change* (Cambridge: Cambridge University Press, 2023), 15.

[4] Ministry of Environment and Forestry, *The State of Indonesia's Forests 2024 - Towards Sustainability of Forest Ecosystems in Indonesia* (Jakarta: Ministry of Environment and Forestry, 2024), 14.

[5] E. S. Nelson and D. R. Reddy, *Green Aviation - Reduction of Environmental Impact Through Aircraft Technology and Alternative Fuels* (London: Taylor & Francis Group, 2017). 327.

[6] Agus Setiawan, "Indonesia's Biodiversity: Problems and Conservation Efforts", *Indonesian Journal of Conservation* 11(1) (2022): 13-21. DOI 10.15294/ijc.v11i1.34532.

[7] Rony Irawanto, "Management of Botanical Gardens in Indonesian Plant Conservation,", *SEMSINA* 2023: 322 – 329. DOI: https://doi.org/10.36040/semsina.v4i01.8116.

[8] Angus Nurse, *Animal Harm - Perspectives on Why People Harm and Kill Animals* (New York: Routledge, 2016), 46.

[9] Ministry of Environment and Forestry, A Snapshot of Illegal Wildlife Trade in Indonesia (Jakarta: Perkumpulan SKALA, 2017), 38.

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USD23 billion annually, which rivals narcotics and illegal weapons trade.[10] Indonesia alone loses around 9 trillion rupiah annually from wildlife crime.[11] A total of USD261 million is disbursed annually for wildlife crime eradication in 67 African and Asian countries.[12]

Wildlife crime is one of the low-risk, but high-gain crimes. Perpetrators are often sentenced to weak sanction, which has not created a deterrent effect. Indonesia is a producing, transit, and destination country for poaching and illegal wildlife trade. This crime is difficult to detect because is well organized and supported by specialist actors. Each stage has its own methods, routes, and markets. The network is not led by one central leader, but by a range of domestic and international specialist actors, from storage, treatment, transportation, manufacturing, industrial production, marketing and retailing of wildlife products.[13]

Illegal wildlife trade is no longer carried out conventionally through face-to-face meetings but has used information technology. Currently, perpetrators are utilizing social media platforms, online marketplaces, digital payments, courier services, and anonymization software to communicate, hide their identities, and obtain money without being detected.[14] It is estimated that in 2017 at least 40 percent of wildlife traders in Indonesia switched to online markets.[15]

Government efforts to preserve biodiversity began in the New Order era through Law Number 5 of 1990 on Conservation of Natural Resources and Ecosystems (Law 5/1990). Law 5/1990 regulates comprehensive ecosystem protection, from habitat protection to illegal trade. Law 5/1990 consists of 14 chapters and 45 articles. The Law regulates protection of life support systems, preservation of plant and animal species diversity and ecosystems; Sanctuary Reserve, preservation of plant and animal species, sustainable utilization of natural resources and ecosystems, Nature Conservation Areas, utilization of plant and wild animal species, public participation, handover of affairs and assistance tasks, investigation, and criminal provisions.

Law 5/1990 has been the main legal basis in biodiversity management for three decades and is considered necessary to be adjusted to current condition. The urge to review Law

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[10] United Nations Development Programme, *Reducing Maritime Trafficking of Wildlife: Best Practices for Ports* (New York: United Nations Development Programme, 2023), 10.

[11] Ministry of Environment and Forestry, A Snapshot of Illegal Wildlife Trade in Indonesia, 48.

[12] M. Montero, et al., *Illegal Logging, Fishing, and Wildlife Trade: The Costs and How to Combat it* (The World Bank, 2019)

[13] UNODC, *Transnational Organized Crime in Southeast Asia: Evolution, Growth and Impact* (UNODC, 2019), 119.

[14] UNODC, 18.

[15] D. A. Sinaga, "*Illegal wildlife trade flourishes online in Indonesia*", accessed July 12, 2026, https://jakartaglobe.id/news/illegal-wildlife-trade-flourishes-online-indonesia/.

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5/1990 at least emerged in the 2000s because the law still emphasizes the protection aspect and pays less attention to the utilization aspect in managing conservation areas.

II. Research Problem

The study shows that Law 5/1990 has weaknesses. First, it does not consider Law Number 5 of 1960 on Basic Agrarian Principles and the Decree of the People's Consultative Assembly Number IX/MPR/2001 as the basis for regulating natural resources. Second, there is a disharmony between Law 5/1990 and other regulations and several Constitutional Court verdicts that emphasize the preventive aspect in managing natural resources, protection, and respect for the rights of indigenous peoples and substantive public participation. Third, Law 5/1990 is not responsive because does not regulate modern biotechnology and genetic resources. Fourth, Law 5/1990 does not provide protection for the management and use of conservation areas by indigenous peoples and public participation is only at the informing level.[16]

The government's initiative to reform the legal framework was finally realized on 7 August 2024 with the enactment of Law Number 32 of 2024 on Amendments to Law 5/1990 (Law 32/2024). Law 32/2024 amended 18 articles, inserted 9 new articles, and removed 1 chapter and 1 article, namely regarding the transfer of affairs and assignment tasks in Law 5/1990. Although it has been awaited for years, Law 32/2024 has not escaped public criticism. In fact, Law 32/2024 was challenged at the Constitutional Court by *Aliansi Masyarakat Adat Nusantara*/AMAN, *Walhi*, *Koalisi Rakyat Untuk Keadilan Perikanan*, and a farmer named Mikael Ane. The formal review application was registered in case number 132/PUU-XXII/2024. Law 32/2024 was challenged because it was considered not to involve the legal subjects that are closely related to the ecosystem *in casu* indigenous peoples and local communities.[17]

As a new policy, the regulatory content of Law 32/2024 is important to be examined to identify policy breakthroughs. This study aims to compare Law 32/2024 with Law 5/1990 to dissect the latest policy innovation. The emergence of Law Number 1 of 2023 on the Criminal Code (Criminal Code), Law Number 20 of 2025 on the Criminal Procedure Code (Criminal Procedure Code), and Law Number 1 of 2026 on Criminal Adjustments (Law on Criminal Adjustments) also be the object of this study.

In addition, the study aims to identify strategic actions that can be utilized by the new administration of President Prabowo Subianto to accelerate the eradication of wildlife

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[16] R. Wahanisa and M. A. Mahfud, "Analysis on Regulation of Conversation on Biological Resources in Constitutional Court Decisions", *Jurnal Konstitusi* 18(2), 2021: 391 – 412. DOI: https://doi.org/10.31078/jk1827.

[17] Utami Argawati, "Interim Ruling in the Conservation Act Review: Hearing Adjourned, Government Prohibited from Issuing New Regulations", accessed July 12, 2026, https://testing.mkri.id/berita/putusan-sela-uji-uu-ksdahe:-sidang-ditunda,-pemerintah-tidak-bolehterbitkan-aturan-baru-21844.

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crime. The aspect of law enforcement gets a significant portion in this study because bold and fair law enforcement is an important element in improving governance. Law enforcement can create a deterrent effect to encourage changes in behavior and obedience in society.

III. Methodology

This study is normative juridical that examines positive law aspects. The study attempts to analyze laws and regulations that are relevant to the problems, namely Law 5/1990, Law 32/2024, and other relevant regulations. This study focuses to the norm system. In addition to applying the statute approach, a conceptual approach is also utilized to identify strategic actions that need to be taken by the government to eradicate wildlife crimes. The legal materials collected and analyzed in this study are primary, secondary, and tertiary legal materials. The technique used in data analysis is content analysis, which is a method for understanding the contents of a text. The study also uses data on law enforcement practices undertaken by Ministry of Environment and Forestry in 2015 - 2024.

IV. Key Findings & Implications

Around the globe, countries have introduced laws and policies to regulate human-environment relations that drive biodiversity loss.[18] The current policies many countries have adopted and are implementing have not halted biodiversity loss as expected. This is also happening in several European peripheral areas that constitute important "biodiversity hotspots" for the numerous species, habitats, and ecosystems they host.[19]

Conservation policies adopted by countries, starting from traditional policies (species protection and area based interventions), intervening sectoral policies such as agriculture or forestry, market based mechanisms, biodiversity offsetting and ecological restoration, to adopting international policy instruments.[20] Evolutionary biologists and ecologists have repeatedly called for a more holistic approach to biodiversity conservation, dialling down the traditional focus on species or habitats, and instead emphasizing ecological and evolutionary processes.[21]

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[18] C. Brockett, et al., "Best practice mechanisms for biodiversity conservation law and policy", *Cambridge Prisms: Extinction.* 2023; 1:e16, doi:10.1017/ext.2023.14.

[19] G. Ferraro and P. Failler, "Biodiversity Conservation and the Role of Policy Resources: The Case of Saint Helena", *Sustainability*, 14(3) (2022), 1250, https://doi.org/10.3390/su14031250.

[20] N. E. Duffus *et al.*, "The Present and Future of Insect Biodiversity Conservation in the Neotropics: Policy Gaps and Recommendations", *Neotrop Entomol* 52 (2023): 407–421, https://doi.org/10.1007/s13744-023-01031-7.

[21] J. A. Tobias *et al.*, "Biodiversity conservation requires integration of species-centric and process-based strategies," *Proceedings of the National Academy of Sciences (PNAS)* 122 (31) e2410936122 (2025), DOI: https://doi.org/10.1073/pnas.2410936122.

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Table 1. New Paradigm for Conservation Policy		
	Species-centric conservation	**Process-based conservation**
Aim	Preventing extinctions	Resilient and adaptable ecosystems
Priority	Boosting populations of rare or declining species	Maintaining and restoring ecosystem processes
Messag	Saving species	Creating sustainable and productive ecosystems
Key actions	Protected areas, threatened species recovery, breeding programmes, habitat restoration, wildlife corridors, action on trade and over-exploitation, species-based restoration	Enhancing genetic diversity, facilitating adaptation, multi-scale connectivity, corridors spanning climate and habitat gradients, maintaining and rebuilding trophic webs, trait-

Source: Tobias et al. (2025).[22]

Based on research, best practice biodiversity laws included the identification of five key principles: threat-based laws, target-based laws, transparency and independence, inclusive decision-making, and evaluation and review, and eight key mechanisms: mainstreaming biodiversity and climate change, indigenous collaborations and partnerships, protected areas, listing and recovery plans, stewardship and private protected areas, land restoration, offsets and no net loss schemes, and legal rights of nature.[23]

Analysis of Policy Breakthrough in Law 32/2024

Law 32/2024 divides three types of conservation area: Sanctuary Reserve and Nature Conservation Area; conservation areas in waters, coastal areas, and small islands; and preservation area. Sanctuary Reserve is divided into Strict Nature Reserves and Wildlife Sanctuary, while Nature Conservation Area is divided into National Park, Nature Recreation Park, and Grand Forest Park. Meanwhile, preservation areas can be in the form of buffer zones for Sanctuary Reserve, Nature Conservation Area, and conservation areas in waters, coastal areas, and small islands; ecological corridors or connecting ecosystems; areas of high conservation value; community-managed conservation areas; and/or local wisdom protection areas, which can come from protected forest areas, production forests, and non-forest area. The government determines the conservation status of wild plants and animals into two categories: protected or unprotected.

There are typologies of prohibition and criminal acts in Law 32/2024, namely activities that can change the integrity of Sanctuary Reserve; activities that can change to the

[22] J.A. Tobias *et al.*

[23] C. Brockett, et al., "Best practice mechanisms for biodiversity conservation law and policy", *Cambridge Prisms: Extinction.* 2023; 1:e16, doi:10.1017/ext.2023.14.

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integrity of Nature Conservation Area; illegal activities against protected plants or their parts in a living or dead state; and illegal activities against protected animals in a living or dead state, their specimens, their parts, or goods made from their parts, including eggs and/or nests of protected animals. Based on the identification results, there are 26 policy breakthroughs in Law 32/2024 that have not been regulated in Law 5/1990, consisting of breakthroughs in technical aspects of conservation, governance, and law enforcement.

Table 2. Policy Breakthrough in Law 32/2024

Policy Breakthrough	Legal Basis	Explanation
Technical Conservation Aspect		
Regulations on genetic resources and genetic diversity	Article 1 number 11 and 12	This policy emphasizes that biodiversity conservation is not only carried out at ecosystem and species level, but also at genetic level.
Regulations on preservation area	Article 1 number 16 and Article 8 verse (2), verse (3), verse (4), and verse (5)	This regulation confirms the government's commitment to strengthen conservation efforts not only within conservation areas, but also outside conservation areas.
Regulation of sustainable use of natural biological resources and ecosystems, namely the use of environmental conditions, wildlife types, and wildlife genetic resources	Article 26 and Article 34	Law 32/2024 confirms the types of environmental service utilization that can be carried out in Nature Conservation Area, namely nature recreation, water and water energy, solar, wind, geothermal, and/or carbon. The government also guarantees the implementation of genetic resource utilization.
Governance Aspect		
Clarity on the division of conservation authority between Minister of Forestry and the Minister of Maritime Affairs and Fisheries	Article 5A	Minister of Forestry determines and manages Sanctuary Reserve and Nature Conservation Area. Meanwhile, Minister of Marine Affairs and Fisheries determines and manages conservation areas in waters, coastal areas, and small islands.
Regulations regarding conservation funding	Article 36A	Law 32/2024 mandates the government and local governments to provide adequate and sustainable funding for conservation activities originating from the state revenue and expenditure budget, local revenue and expenditure budget, and/or other legitimate sources.

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Strengthening the role and recognition of indigenous law communities	Article 37	Law 32/2024 explicitly mentions a new legal subject that previously did not exist in Law 5/1990, namely indigenous law communities. This indicates that the government recognizes the existence of indigenous law communities as guardians of forests and biodiversity at the grassroots level.
Law Enforcement Aspect		
Application of administrative sanctions instruments	Article 9 verse (6)	Administrative sanctions are divided into five types, namely written warnings, temporary suspension of business, closure of locations, administrative fines, and/or revocation of business licenses, which can be imposed partially or simultaneously.
Granting protected status to plants and animals from abroad that enter Indonesia's territory whose status is protected by international provisions	Article 23 verse (1)	This provision supports biodiversity protection at international level, because the government recognizes protected status, even though plants and animals do not have protected status by the Indonesian
Additional authority of civil servant investigators to arrests and detain	Article 39 verse (5) letter i	Arrest and detention are integral authorities that all investigators should have to secure suspects and collect evidence.
The authority of civil servant investigators to open, examine, and/or confiscate letters, electronic media, or deliveries	Article 39A verse (2) letter a	Wildlife crimes are carried out through sophisticated modus operandi, one of which is using information technology and other forms of communication, so that civil servant investigators are given the legality to collect private and confidential communication data.
The authority of civil servant investigators to request information on conversations via communication devices.	Article 39A verse (2) letter b	Wildlife crimes are committed through sophisticated modus operandi, one of which is using information technology and other forms of communication, so that civil servant investigators are given the legality to collect private and confidential communication data. This authority must obtain permission from the head of the district court.

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Civil servant investigators' authority to block suspects' accounts.	Article 39A verse (2) letter c	Wildlife crimes are committed to gain financial profit,[24] so that blocking accounts is indispensable to secure evidence and cut off perpetrator's resources.
The authority of investigators, prosecutors, or judges to request data on suspect's wealth and tax data	Article 39A verse (3) letter a	Wildlife crimes have a strong economic dimension, so law enforcement officers need financial data from related agencies to prove and confiscate profits.
The authority of investigators, public prosecutors or judges to request Indonesia Financial Transaction Reports and Analysis Center/FINTRAC to conduct investigations into the suspect's financial data	Article 39A verse (3) letter b	Financial data from FINTRAC is essential for law enforcement to identify criminal networks, identify assets for evidence and asset recovery, and develop cases towards money laundering crimes.
The authority of investigators, prosecutors, or judges to request relevant agencies to prohibit someone from traveling abroad	Article 39A verse (3) letter c	The perpetrators of wildlife crimes are organized criminal networks that have resources and operate transnationally. There is a precedent for perpetrators to flee abroad to avoid the law.
The authority of investigators, public prosecutors, or judges to determine someone as a suspect and include them in the wanted list/fugitive.	Article 39A verse (3) letter d	By designating a suspect as a fugitive, this will provide notification to national law enforcement officers and also international authorities to pursuit the suspect and also encourage *in absentia* trial.
Recognition of electronic evidence	Article 39B verse (1) letter b	Wildlife crimes are committed through sophisticated modus operandi, one of which is using electronic media. This provision strengthens the recognition of electronic evidence as regulated in Law Number 11 of 2008 on Electronic Information and Transactions, that electronic information and/or electronic documents and/or their printouts are valid legal evidence.

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Release of living animal evidence into natural habitat	Article 39B verse (3)	In some cases, animals died due to the protracted law enforcement process. Law 32/2024 mandates the government to save living animals, even though they are used as evidence in enforcement process. The release of animals into natural habitat is sufficiently proven through a release report.
Stricter criminal sanctions	Article 40 until Article 40B	In Law 5/1990, criminal sanctions are considered too low, namely the threat of a maximum prison sentence of 10 years and a maximum fine of IDR200 million. Law 32/2024 formulates stricter sanctions. The threat of a maximum prison sentence of 20 years and a maximum fine of category VIII.
Specific minimum criminal sanctions	Article 40 until Article 40B	Minimum sentence policy is originally intended to provide legal certainty and uniformity in the imposition of criminal sentences so that there is no sharp disparity between cases with similar characteristics. In Law 5/1990, there is no specific minimum sentence, so the sentences imposed are often very low, even imprisonment of less than 1 year. Through Law 32/2024, a special minimum sentence is regulated, namely a minimum sentence of 2 years imprisonment and a category III fine; a minimum sentence of 3 years imprisonment and a category IV fine; and a minimum sentence of 4 years imprisonment and a category IV fine (depending on crime typology).

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Gradation of criminal sanctions based on the act	Article 40 until Article 40B	Law 32/2024 applies criminal sanctions based on the gradation of the act. For example, in Law 32/2024, the act of killing protected animals is subject to heavier sanctions compared to the act of removing protected animals from one place to another place within and/or outside Indonesia's territory. In Law 5/1990, both acts are subject to the same criminal sanctions, although the level of fatality is different.
Recognition of corporate criminal liability	Article 1 number 24 and Article 40C	Criminal liability is also given to managers who have functional positions, give orders, hold control, and/or are beneficial owners of the corporation.
Increasing criminal sanctions for the use of information technology facilities	Article 40C verse (2)	This sanction was given in response to the rampant illegal trade of plants and/or animals through online platforms.
Additional criminal penalties for corporations	Article 40C verse (3)	Additional penalties imposed to strengthen deterrent effect and recovery of conditions. There are 11 types of additional criminal penalties, namely compensation payments; costs for restoring Sanctuary Reserve and/or Nature Conservation Area; costs for rehabilitation, translocation, and release of animals to original habitat; costs for maintaining plants and/or animals that cannot be returned to original habitat; confiscation of plants and/or animals or profits obtained from criminal acts; announcement of court verdicts; revocation of certain permits; permanent prohibition of carrying out certain acts; closure of all or part of the business premises and/or business activities; freezing of all or part of business activities; and/or dissolution of the corporation.

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Confiscation and auction of corporation assets	Article 40C verse (5)	Confiscation and auction of assets are carried out if the corporation does not fulfil additional criminal penalties in the form of compensation payments; costs for restoring the Sanctuary Reserve and/or Nature Conservation Area; costs for rehabilitation, translocation, and release of animals to their original habitat; costs for maintaining plants and/or animals that cannot be returned to their original habitat; and confiscation of plants and/or animals or profits obtained from criminal acts. This provision will enhance corporations obedience in executing additional penalties and prevent legal vacuum when corporations do not execute additional criminal penalties.
Elimination of provisions on criminal acts of exploiting water resources in Sanctuary Reserve and Nature Conservation Area in Law Number 17 of 2019 on Water Resources	Article 43A verse (2)	This provision is intended to prevent legal dualism and overlapping regulations. Currently, criminal acts of water exploitation in Sanctuary Reserve and Nature Conservation Area are subject only to Law 32/2024.
Source: content analysis of Law 32/2024		

There are 26 policy breakthroughs in Law 32/2024 that were previously not regulated in Law 5/1990. These policy breakthroughs are divided into technical aspect of conservation (3 policy breakthroughs), governance aspect (3 policy breakthroughs), and law enforcement aspect (20 policy breakthroughs). Law enforcement is the most improved aspect in Law 32/2024. This indicates that lawmakers have high expectations for law enforcement in improving governance in biodiversity conservation.

This study also identified policy gaps in Law 32/2024. First, Law 32/2024 is still like Law 5/1990 which relies too much on criminal sanctions in responding violations. Law 32/2024 indeed introduces a new legal instrument, namely administrative sanctions. However, the application of administrative sanctions is limited only to business license holder in preservation areas. In addition, Law 32/2024 does not provide civil law instruments or dispute resolution, either through the courts or outside the court. In fact, civil instruments

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are needed for the government to claim compensation, for example due to ecosystem damage or the death of plants and/or animals.

Second, Law 32/2024 has not accelerated the investigation process because civil servant investigators are still too dependent on police investigators. The provisions of Article 39 verse (6) of Law 32/2024 state that civil servant investigators notify the commence of the investigation and report the results of their investigation to the prosecutor through police investigators. In accordance with Criminal Procedural Code, it is indeed regulated that civil servant investigators are under the coordination and supervision of police investigators. Realizing the complex characteristics of wildlife crimes and sophisticated modus operandi, civil servant investigators should be able to directly notify the start of an investigation and submit the results of their investigation directly to the prosecutor to accelerate case handling, but still coordinate with police investigators.

Third, there is fundamental authority that investigators do not possess. Law 32/2024 provides progressive authority for law enforcement officers, especially civil servant investigators to obtain evidence, for example the authority to obtain financial data and communication data from related agencies. However, given the high complexity of handling wildlife crimes, there is authority that has not been regulated, namely the authority of investigators to carry out undercover buying techniques. This authority is very much required to dismantle illegal wildlife trade network, because the perpetrators need to be "lured" to show the plants, animals, and/or derivative products they control. Lawmakers should reflect on Law Number 35 of 2009 on Narcotics (Narcotics Law). In Article 75 letter j of Narcotics Law, it is stipulated that investigators of National Narcotics Agency are authorized to perform undercover buying and supervised delivery investigative techniques. This technique is also given to investigators in Law Number 5 of 1997 on Psychotropics.

Wildlife crimes have a strong connection with narcotics crimes, and even have identical characteristics, namely using combined smuggling methods (wildlife and narcotics are smuggled in the same shipping mode), camouflage techniques, using more than one trade route, using shared smuggling routes and transportation methods, using a barter system, and both are accompanied by money laundering.[24]

Fourth, there are no regulations pertaining the authority of forest ranger. Forest ranger has a strategic role in preventing and handling wildlife crimes, but its authority, duties, or functions have not been regulated in Law 5/1990 or Law 32/2024. Regulations regarding forest ranger at the law (*Undang-Undang*) level are only found in Law Number 41 of 1999 on Forestry and Law Number 18 of 2013 on Prevention and Eradication of Forest

[24] D. van Uhm, N. South, and T. Wyatt, "Connections between trades and trafficking in wildlife and drugs", *Trends in Organized Crime* (2021) 24: 425–446, https://doi.org/10.1007/s12117-021-09416-z.

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Destruction. Affirmation of forest ranger authority should also be regulated in Law 5/1990 or Law 32/2024 because the characteristics of biodiversity cases are different from the characteristics of forestry cases in general.

Important Notes: The Emergence of Law Reform in Indonesia

In 2026, Indonesia marked the emergence of national legal reform with the enactment of three laws: Criminal Code, Criminal Procedure Code, and Law on Criminal Adjustments. These three laws came into effect on January 2, 2026. Criminal Code was established to replace *Wetboek von Strafrecht* as stipulated in Law Number 1 of 1946 on Criminal Law Regulations which has been amended several times. Criminal Procedure Code was established to realize an integrated criminal justice system by adjusting the functions, duties, and authorities of law enforcement officers to align with state developments, advances in science and technology, and international conventions that have been ratified by the Indonesian Government. The Criminal Adjustment Law then was established as an order from the Criminal Code. This law aims to complement the criminal law system to be consistent, adaptive, and responsive to social change, so that adjustments are needed to criminal law norms that have the potential to cause uncertainty and injustice both between laws outside the Criminal Code and Local Regulations with the Criminal Code and within the Criminal Code itself. The enactment of the three laws brings several new implications for the governance for handling criminal cases in Indonesia, including:

Table 3. New Criminal Policy in Indonesia After the Enactment of Criminal Code, Criminal Procedural Code, and Law on Criminal Adjustment.

New Provision	Legal Basis	Explanation
The application of double track system for sanctioning, namely a combination of primary penalties and actions.	Article 12 and Article 103 Criminal Code	This concept combines sanctioning with mentoring for the perpetrator and restoration for the impact of the crime
Application of categorization for criminal fines	Article 79 Criminal Code	There are 8 categories: a. category I: IDR1 million; b. category II: IDR10 million; c. category III: IDR50 million; d. category IV: IDR200 million; e. category V: IDR500 million; f. category VI: IDR2 billion; g. category VII: IDR5 billion; h. category VIII: IDR50 billion

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The recognition of living law	Article 2 Criminal Code	Violation of the living law is sanctioned by fulfilling customary (*adat*) obligations
The elimination of specific minimum sentence provisions	Article I Law on Criminal Adjustment	This provision does not apply to heavy crimes against human rights, terrorism, corruption, and money laundering
The adjustment of criminal sanction	Article II - Article VI Law on Criminal Adjustment	It regulates criminal sanctioning in Laws outside Criminal Code and Local Regulation (*Peraturan Daerah*). This adjustment does not apply to narcotics crime
Criminalization due to the fulfilment of the elements of a criminal act without considering the element of fault (*schuld*)	Article 37 Law on Criminal Adjustment	This clause provides policy flexibility for criminalization without fault (strict liability), whether intentional or negligent.
Affirmation of *ultimum remedium* principle in handling the case	Article 613 verse (3) Law on Criminal Adjustment	Laws that have characteristic of administrative penal law, must prioritize mentoring and administrative sanctions or other sanctions before the imposition of criminal sanctions
Police investigator are the main investigators	Article 6 verse (2) Criminal Procedural Code	Civil servant investigators are under the coordination and supervision of the police. Every legal action conducted by the civil servant investigators must be reported to the police investigators.
Pre-investigations (*penyelidikan*) can be carried out by officials other than the police	Article 1 verse (7) Criminal Procedural Code	In old Criminal Procedural Code, pre-investigation (actions to identify and discover event allegedly being a crime) could only be carried out by the police.
Protection for victims, informants, complainants, witnesses, suspects, defendants, and convicts, including people with disabilities, women, and elders	Article 34 verse (5), Article 53 – 54, Article 144, Article 145, Article 146, Article 147, and Article 148 Criminal Procedural Code	Protection includes avoiding any threats as well as fulfilment of basic rights in law enforcement processes

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Expansion of evidence	Article 235 Criminal Procedural Code	New evidence that is recognized is physical evidence, electronic evidence, judge's observations, and anything that can be used for the purposes of proof in court proceedings as long as obtained in accordance with the law.
The recognition of in absentia trial	Article 266 Criminal Procedural Code	Previously, crimes that could be processed in absentia were only corruption, money laundering, fisheries, terrorism and forest destruction.
Expansion of pretrial objects	Article 158 – 164 Criminal Procedural Code	New objects in pretrial include: all of coercive measures; confiscation of goods that are not unrelated to a crime; delay in handling cases without valid reasons; and suspension of detention
Strengthening the role of advocates in providing legal aid	Article 149 – 155 Criminal Procedural Code	Advocates also have the status of law enforcement officers who can give legal service and legal aid to suspects, defendants, convicts, witnesses, and victims in investigation, prosecution, and trial processes
Establishment of an endowment fund for redress rehabilitation, restitution and compensation	Article 187 Criminal Procedural Code	The endowment fund is collected from state budget, investment income, profit sharing from Non-Tax State Revenue of law enforcement, proceeds from the management of confiscated goods, and other legitimate and non-binding sources
Recognition of alternative mechanisms to settle the case	Article 78 – 88 and Article 328 Criminal Procedural Code	There are three alternative mechanism: restorative justice, plea bargain, and deferred prosecution agreement
Source: Law 32/2024 and Law on Criminal Adjustment		

Reducing criminal sanctions and eliminating special minimum sentences could be beneficial in preventing overcrowding in correctional institutions. According to data from Ministry of Immigration and Corrections in 2025, the number of inmates in correctional institutions and detention centers reached 281.832, while the available capacity was only 147.530. Thus,

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the occupancy rate of prisons and detention centers reached approximately 190,9 percent of ideal capacity.[25] However, the reduction of criminal sanction and elimination of special minimum sentences also applies to fines. This has the potential to weaken law enforcement efforts.

There are basically two types of penalties: monetary and non-monetary (which usually refers to imprisonment). From a legal perspective, monetary sanctions can either be administrative fines or take the form of criminal fines. Some economists have long advocated that when deterrence could be achieved in the same way through those types of sanctions, fines would be preferred to imprisonment penalties. The straightforward economic reason is that a prison sanction leads to substantial costs for society, whereas fines can shift funds from the perpetrator to society.[26] Then expressionist theorists of punishment often agree on two points: first, that a monetary fine is a more humane and efficient punishment than imprisonment and, second, that a monetary fine cannot replace a prison sentence, at least for non-minor offenses.[27]

When minimum sentences are eliminated, judges may lose the standard for sentencing. When judges impose relatively high sentences in conservation cases, they are morally and legally justified because there is a minimum sanction required. Yet now there is no established guideline for the minimum sentence. Judges who are unaware that wildlife crimes have serious impacts on ecosystems may impose relatively light sentences. The severity of the sentence in conservation cases will depend on the discretion of the judge deciding the case. It is possible that conservation cases could result in light sentences, as under Law 5/1990.

The third, civil servant investigators are no longer can exercise their authorities independently because they are very attached to police investigator as arranged in Criminal Procedural Code. The authority of civil servant investigators as stated in Law 32/2024 and the other sectoral laws remain valid and can be utilized as stipulated in Article 7 verse (4) of the Criminal Procedure Code: "*Civil Servant Investigators and Specific Investigators have authority based on the law which is their legal basis.*" Nevertheless, civil servant investigator is unable to perform their authority freely, especially authority to arrests and detain, as described below:

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25 Yustina Sari and Puteri Hikmawati, "Strengthening the Legal Framework for Mass Amnesty Policies to Address Overcrowding in Correctional Facilities", Jurnal Negara Hukum 16(2) (2025): 182 – 200, DOI: https://doi.org/10.22212/ jnh.v16i2.5136.

26 M. Faure and J. Ma, "Cartel Enforcement in China. Monetary or Criminal Sanctions?" In N. Philipsen and G. Xu (Eds.), *The Role of Law and Regulation in Sustaining Financial Markets* (pp. 195-221) (New York: Routlegde, 2014), 199.

27 I. Coca-Vila, "What's Really Wrong with Fining Crimes? On the Hard Treatment of Criminal Monetary Fines", *Criminal Law and Philosophy* 16 (2) (2022): 395-415, doi:10.1007/s11572-021-09623-3.

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Table 4. New Coordination Pattern between Civil Servant Investigator and Police Investigator.

New Coordination Pattern	Legal Basis
In executing pre-investigative duties, civil servant investigator are coordinated, supervised and given instructions by police investigators	Article 20 verse (1)
Civil servant investigator and specific investigators in carrying out their duties and authorities are under the coordination and supervision of police investigators	Article 7 verse (3)
Civil servant investigator and specific investigators in carrying out their duties and authorities are required to coordinate with police investigators until the case files are handed over to the prosecutor	Article 7 verse (4)
The submission of case files carried out by civil servant investigator and specific investigators is carried out through police investigators who then jointly submit the case files to the prosecutor	Article 8 verse (3)
If civil servant investigator or specific investigators stops the investigation, is obliged to involve police investigator	Article 24 verse (3)
Civil servant investigator and specific investigators cannot make arrests except on the orders of police investigators	Article 93 verse (3)
Civil servant investigator and specific investigators cannot make detention except on the orders of police investigators	Article 99 verse (3)

Source: Criminal Code, Criminal Procedural Code, and Law on Criminal Adjustment

Procedural independence is the legal conditions inherent in the status of an investigator, which implies a significant degree of legal freedom in terms of exercising the discretionary powers in a criminal proceeding. This condition is expressed in the ability of the investigator to independently perform any investigative measures, make a variety of procedural decisions, assess the strength of the evidence, and take personal responsibility for their proper execution.[28]

The presence of civil servant investigator is crucial to protect the implementation and integrity of a sectoral law. Almost every sectoral law has provisions regarding the mandates for civil servant investigator to conduct investigations. Civil servant investigator has a better

[28] S. B. Rossinskiy and D. B. Bazarova, "Procedural Independence of the Investigator: Myth of Reality?", *The American Journal of Political Science Law and Criminology* 5(06) (2023): 44–56, https://doi.org/10.37547/tajpslc/Volume05Issue06-09.

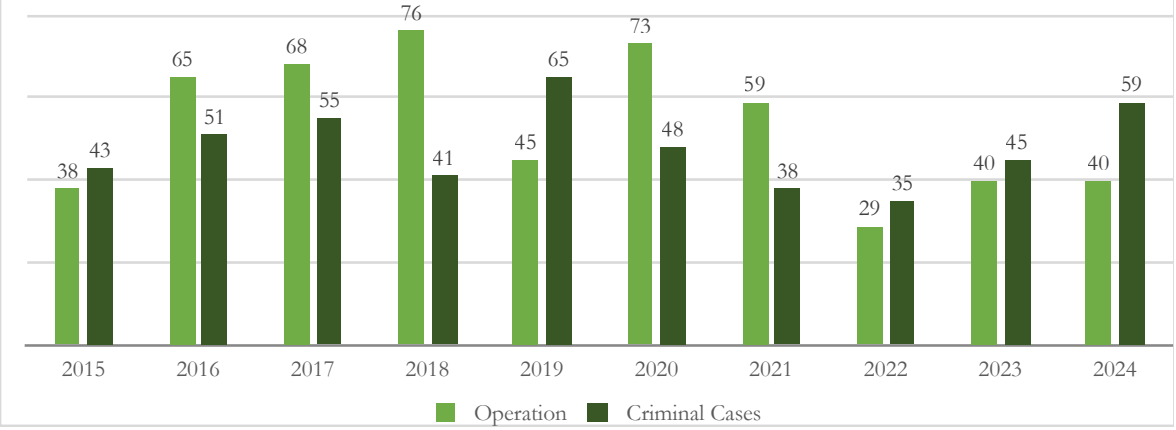
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understanding of the characteristics of a sectoral criminal act.[29] The effectiveness of the criminal justice system is largely determined by the alignment between the authority structure and institutional functions. When authority is not placed in the hands of the most substantively competent actors, the system will operate inefficiently and be costly. In this context, the subordination of the civil servant investigator under police investigator negates the initial purpose of its establishment to accelerate sectoral law enforcement.[30]

Identification of Strategic Actions to Accelerate Law Enforcement of Wildlife Crimes

The Indonesian government in 2015 took a progressive step in eradicating wildlife crimes by forming specialized unit, namely the Directorate General of Law Enforcement on Environmental and Forestry at Ministry of Environment and Forestry. Over the past decade, the Ministry of Environment and Forestry (currently the Ministry of Forestry) has successfully carried out 533 operations to eradicate illegal wildlife trafficking and resolved 480 criminal cases. From the results of these operations, 256.451 animals and 22.857 animal body parts were successfully secured.

Graphic 1. Law Enforcement on Wildlife Crime by Ministry of Environment and Forestry 2015 – 2024.



Source: statistic data of Ministry of Environment and Forestry 2015 – 2024.

Various policy breakthroughs in Law 5/1990 and 32/2024 need to be strengthened with several strategic actions to accelerate law enforcement. The study identified three strategic actions in law enforcement, namely the application of layered articles and multi-regime

[29] F. A. Ndaru, "Should Civil Servant Investigators Become Functional Positions?", *Jurnal Bina Praja* 16(3) (2024): 639-661, https://doi.org/10.21787/jbp.16.2024.639-661.

[30] T. W. Pranoto, et al., "The Role of Civil Servant Investigators in the Criminal Justice System Following the Amendment of the Criminal Procedure Code", JUSTLAW: Journal Science and Theory of Law 2(2) (2025): 1-11, e-ISSN: 3089-2414.

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investigations, science and technology support, and collaborative networks at the international level.

The first strategic action is application of layered articles and multi-regime investigations. From 29 court decisions related to wildlife crimes from January to August 2020 collected by the WildEye community organization, it was concluded that the sentences for perpetrators of wildlife crimes were still very low. More than half of the cases were only sentenced to less than a year in prison. The data also shows that the fines are relatively minimal. Seven defendants were sentenced to a fine of IDR100 million, five cases with a fine of IDR50 million, while the rest varied between IDR1 million and IDR10 million.[31] One method believed to be effective is the application of layered articles. This method aims to increase deterrent effect using multiple laws. This is done to maximize the application of sanctions for creating deterrent effect and accountability for perpetrators. The advantages of one law can complement the gaps in other laws.

Law 5/1990 jo. Law 32/2024 is the core regulation in conservation purview. Wildlife crimes are cross-sectoral, so they not only violate conservation law, but also other rules. In addition to Law 5/1990 jo. Law 32/2024, the study found other regulations that can be utilized to eradicate wildlife crimes, namely Law on Forestry; Law on Environmental Protection and Management; Law on Prevention and Eradication of Forest Destruction; Law on Land and Water Conservation; Law on Customs; Law on Protection of Plant Varieties; Law on Fisheries; Law on Spatial Planning; Law on Mineral and Coal Mining; Law on Horticulture; Law on Management of Coastal Areas and Small Islands; Law on Animal Husbandry and Animal Health; Law on Water Resources; Law on Animal, Fish, and Plant Quarantine; Law on Sustainable Agricultural Cultivation System; Law on Prevention and Eradication of Money Laundering; and Law on the Eradication of Corruption.

The application of a legal regime other than conservation law was successfully implemented. Ministry of Agriculture in 2019 used Law Number 21 of 2019 on Animal, Fish and Plant Quarantine to ensnare a wildlife trader named Irawan Shia. In 2020, Pekanbaru District Court sentenced Irawan Shia to four years in prison and a fine of IDR1 billion, which was a higher verdict than the verdict in the case using Law 5/1990.[32] Law enforcement agencies, namely the Corruption Eradication Commission, the Police, and the Prosecutor's Office, also need to investigate alleged corruption, because there are state officials who are involved in wildlife crimes. In addition, the Constitutional Court through

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[31] R. A. Pratama and W. U. N. Zuhra, "*Quarantine Law: New Hope in Eradicating Wildlife Smuggling*", accessed July 12, 2026, https://www.ekuatorial.com/2020/10/uu-karantina-harapan-baru-dalam-pemberantasan-penyelundupan-satwa/.

[32] Anggi Romadhoni, "*Judge sentences African lion cub smuggler to four years in prison*", accessed July 12, 2026, https://www.antaranews.com/berita/1615370/hakim-vonis-empat-tahun-penjara-penyelundup-bayi-singa-afrika.

Decision Number 15/PUU-XIX/2021 grant investigators in the forestry sector the authority to investigate money laundering crimes. Money laundering investigations are very important to increase the deterrent effect, dismantle the network of criminal gangs, recover assets, and identify beneficiaries. With the implementation of these various legal regimes, law enforcement that intersects with the issue of biodiversity can be handled by investigators from various agencies, including local governments. And since all civil servant investigators are subordinate of police investigators in Criminal Procedural Code framework, it is also important to establish a strong synergy between civil servant investigator institution and the Police. It is crucial to develop a technical regulation, especially for conducting arrest and detention for civil servant investigator under the order of police investigator.

The second strategic action is science and technology support. Law enforcement needs to be supported by science and technology to strengthen the evidence. In uncovering cases related to biodiversity, a science and technology approach is carried out by involving experts, forensic support, and digital transformation. These three things are very important to accelerate the process of making accurate decisions. Experts contribute in translating scientific evidence into legal evidence. Several scientific fields are needed in handling biodiversity cases, including mapping and geospatial, spatial planning, microbiology, molecular biology, forensics, wood administration, wildlife utilization, identification of species, public policy, psychology, sociology, criminology, intelligence, economic valuation, agronomy, and other sciences.

Forensic support is the application of scientific knowledge for the purpose of resolving legal problems. The function of forensics is to provide reliable, accurate, and timely information to officers. To uncover wildlife cases, the types of forensics used are biological forensics and digital forensics. Illegal circulation of wildlife can be traced through deoxyribonucleic acid (DNA) testing at the wildlife origin and final distribution locations. Through biological forensics, the location of the wildlife habitat can be identified. Digital forensics is also needed because today's crimes use communication and information technology. Digital forensics is the process of acquiring, identifying, evaluating, and presenting electronic evidence (information extracted from computers or digital devices). The science and technology approach can only be realized by involving support from key actors, ranging from academics, practitioners, and experts spread across laboratory institutions, universities, private institutions, or government agencies. Artificial intelligence technology can also be a game changer in eradicating wildlife crimes. Artificial intelligence can help officers identify species, verify the contents and documentation of shipments, detect sales via cyberspace, and identify trade patterns. Artificial intelligence thus has great potential to reduce the need for personnel and time to conduct field inspections.

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Since 2017, Ministry of Environment and Forestry has carried out a digital transformation to eradicate wildlife crimes by designing cyber patrol program to monitor wildlife trade via internet, social media, and online marketplace. If an illegal transaction is found online, the Ministry will immediately notify the online platform to immediately close the content and seller account; write and submit a request to Ministry of Communication and Information (currently Ministry of Communication and Digital) to immediately close the content and accounts of the sellers; and/or carry out profiling of cyber accounts involved in illegal transactions and immediately enforce the law. A total of 3.980 contents and 256 social media accounts were caught by the cyber patrol and deleted.[33]

The third strategic action is collaborative network at international level. Synergistic partnerships at the global level are urgently required because biodiversity issues are cross-border, have broad and systemic impacts, and involve transnational actors. Understanding and collaboration between countries are unavoidable, both multilaterally and bilaterally, including by using cooperation through mutual legal assistance (MLA) to prosecute transnational criminals. At the global level, there is the International Consortium on Combating Wildlife Crime (ICCWC) which is a coalition of five international organizations, namely the Secretariat of the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES), The International Criminal Police Organization (INTERPOL), the United Nations Office on Drugs and Crime (UNODC), the World Bank Group (WBG), and the World Customs Organization (WCO).

Indonesia plays an active role in CITES. There are three agencies assigned for CITES, namely: Directorate General of Natural Resources and Ecosystem Conservation as Management Authority; Directorate General of Law Enforcement as Enforcement Authority; and National Research and Innovation Agency as Scientific Authority. Indonesia also plays an active role in regional level instruments such as the ASEAN Wildlife Enforcement Network (ASEAN-WEN) and the ASEAN Senior Officials on Forestry (ASOF).

International collaboration is also necessary to obtain funding support through the Global Environment Facility (GEF). GEF is a funding mechanism established in 1991 to foster international cooperation in addressing global environmental threats. GEF is an incremental funding mechanism from the basic financing of recipient countries. GEF prioritizes funding support to ensure the success of strategic steps in building national capacity in supporting environmental protection. Indonesia is among the top five countries that can utilize GEF funding and provide real impacts. The GEF-8 cycle (GEF-8 replenishment) has started from July 1, 2022 to June 30, 2026 with funding sources coming

[33] Irsyan Hasyim, "*Combating Wildlife Trade on the Internet, KLHK Removes 3,980 Content and 256 Accounts*", accessed July 12, 2026, https://www.tempo.co/lingkungan/perangi-perdagangan-satwa-di-internet-klhk-hapus-3-980-konten-dan-256-akun-1175980.

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from 39 donor countries. Meanwhile, the Country System for Transparent Allocation of Resources (STAR) was published on July 1, 2022. In the 8th cycle of the GEF (GEF-8), Indonesia received a STAR fund allocation of USD 103,65 million, which is divided into 3 focal areas, namely biodiversity (USD82,15 million), climate change (USD20,05 million), and land degradation (USD1,45 million).

Besides GEF mechanism, the government can seek funding from bilateral cooperation. Indonesia and Norway partnership can be an interesting example. The two countries are involved in a results-based contribution scheme for emission reductions. The value that has been paid is USD156 million, which is divided into three stages, namely stage 1 (2016/2017), stage 2 (2017/2018), and stage 3 (2018/2019). The two countries are currently discussing further implementation of stage 4.

Numerous wildlife rescue initiatives on a global scale have been carried out by Ministry of Environment and Forestry together with related parties. From 2015 to 2024, there have been four cases of wildlife trade cases across countries. The first case was the use of MLA instrument between Indonesian and Dutch authorities to ensnare Eric Roer, a Dutch citizen living in Bali, Indonesia. Because the case was in two different jurisdictions, the MLA was used to help gather information related to this case. This MLA was the first between Indonesia and Netherlands for environmental case. The parties involved in handling this case were Ministry of Environment and Forestry, Indonesian Police, Ministry of Law and Human Rights, and Dutch Police. Denpasar District Court on November 13, 2019, declared Eric Roer guilty of distributing body parts of protected animals from Indonesia to Netherlands and sentenced him to two years inprisonment and IDR50 million fine.

The second case is the facilitation from Ministry of Environment and Forestry to London Metro Police regarding the case involving celebrity Stephanie Scolaro, a British citizen. The perpetrator distributed hats and bags made of rare snakeskin from Indonesia to Germany worth £18,000. To deceive officers, the perpetrator used fake CITES documents. On January 22, 2019, Southwark Crown Court sentenced Stephanie Scolaro to 12 months of community service and 160 hours of unpaid work. London Metro Police expressed their gratitude to the Indonesian Government for the support at the London Conference on the Illegal Wildlife Trade 2018.

The third case is the repatriation of 322 rare birds in collaboration with the Vietnamese authorities. On June 17, 2019, the Vietnamese police confiscated 322 parrots without valid documents at Noi Bai Airport. The sender of the birds was a logistics company with an address in North Sumatra Province, Indonesia. The Vietnamese police then asked for assistance from the Indonesian Police to repatriate the birds (312 birds were dead and 10 were still alive). In July 2019, the Indonesian Police asked for support from Ministry of

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Environment and Forestry for the repatriation process and joint investigation in uncovering the wildlife crime network.

The fourth case is the repatriation of 91 endangered Indonesian animals from Davao, Philippines. These animals were confiscated by the Philippine Authorities since April 8, 2019. On October 14, 2019, the Maty City Court ordered the Philippine Government to repatriate the animals to Indonesia. On July 30, 2019, the repatriation process was held in Bitung City, North Sulawesi Province, Indonesia and was attended by the Mayor of Bitung, the Ministry of Transportation, the Agricultural Quarantine Agency, the Directorate General of Customs and Excise, the Masarang Foundation, and the mass media.

V. Conclusion

The study identified 26 policy breakthroughs in Law 32/2024, namely policy breakthroughs in technical aspects of conservation (3 policy breakthroughs), governance aspects (3 policy breakthroughs), and law enforcement aspects (20 policy breakthroughs). Policy breakthroughs in the law enforcement aspect were most often found, so there is an indication that policy makers place significant expectations on law enforcement to strengthen the deterrent effect and behavioural change in society. The study also identified policy gaps in Law 32/2024. It relies heavily on criminal sanctions, makes civil servant investigators too dependent on police investigators, does not grant fundamental authorities to investigators in building cases, and does not regulate the authority of forest ranger officials. With the enactment of Criminal Code, Criminal Procedure Code, and Law on Criminal Adjustments, some legal breakthroughs in Law 32/2024 are no longer valid, those are the reduction of criminal sanction from maximum 20 year of imprisonment and a Category VIII fine to 15 year of imprisonment and a Category VII fine, the nullification of specific minimum criminal sanction, and the restriction of civil servant investigator authority, especially for arrests and detention.

The study recommends three strategic actions for the government to accelerate law enforcement, namely the application of layered articles and multi-regime investigations, science and technology support, and collaborative networks at the international level.

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